

CPC INTERNAL 1

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Q1. A institutes a suit against B seeking (i) declaration of title, (ii) possession, and (iii) mesne profits. The trial court holds that A has title and that B is in wrongful possession. However, it directs that the amount of mesne profits shall be determined in a separate inquiry. The court formally directs B to deliver possession but does not determine the amount of mesne profits.

B argues: "There can be no decree because the monetary component of A's claim remains undetermined."

Which is the best answer?

- \* A. B is correct because a decree must finally dispose of every relief claimed in the suit i.e. final decree.
- \* B. B is correct because an adjudication is not a decree unless the exact amount of every monetary claim is quantified.
- ✓ C. B is incorrect; the adjudication may constitute a decree notwithstanding that the amount of mesne profits is to be subsequently determined in accordance with the CPC.
- \* D. B is incorrect only if A expressly waives his claim for mesne profits.

Q2. A wrongfully possesses B's land and constructs an irrigation system at his own expense. The irrigation system substantially increases agricultural yield. B subsequently establishes his right to possession and claims mesne profits calculated on the entire increased yield.

A contends that the increased profits attributable to his own improvement cannot be treated as mesne profits.

Which is most accurate?

- \* A. A is correct because any improvement made during wrongful possession is automatically excluded from the calculation.
- ✓ B. A is correct insofar as the statutory definition excludes profits due to improvements made by the person in wrongful possession.
- \* C. A is incorrect because all profits generated during wrongful possession belong to the lawful owner.

\* D. A is incorrect because the CPC makes no distinction between naturally generated profits and profits attributable to improvements.

Q3. A occupied B's studio without his knowledge. He films a viral Youtube series there and during his possession, earns Rs. 1 crore. B claims Rs. 1 crore as mesne profits.

- ✓ A. The court needs to separate the income attributable by use of the premises and A's independent creative work to decide mesne profits.
- \* B. B's demand is unsupported as it is A's work that has earned him the money.
- \* C. The entire amount of Rs. 1 crore is payable as mesne profits because A shot his series at the property that belonged to B.
- \* D. Mesne profits include all profits that the wrongful possessor individually earned during his possession.

Q4. A suit valued at ₹18 lakh is filed before Court A. Court A is the lowest-grade court in the district, but its pecuniary jurisdiction extends only to ₹10 lakh. Court B, a higher-grade court, has jurisdiction up to ₹50 lakh.

The plaintiff argues that Section 15 requires every suit to be filed in the lowest court, so Court A must hear it.

- \* A. Court A has jurisdiction because Section 15 itself confers jurisdiction on the lowest court.
- ✓ B. Court A lacks pecuniary competence to try the ₹18 lakh suit; Section 15 does not enlarge a court's substantive pecuniary jurisdiction as per section 6.
- \* C. Court A obtains jurisdiction because the plaintiff chose it.
- \* D. Section 15 eliminates pecuniary limits whenever a lower court exists as per section 6.

Q5. <sup>plaintiff</sup> A, residing in Delhi, alleges that B committed a civil wrong against him in Agra. <sup>defendant</sup> B resides in Lucknow. A claims compensation. Jurisdiction? Agra or Lucknow

- \* A. Delhi alone because A suffered the loss there.
- \* B. Either in Delhi, Agra and Lucknow
- ✓ C. In Agra or in Lucknow
- \* D. Any court chosen by A within India.

Q6. A company has its registered office in Mumbai and branch office in Bengaluru. A contract is

~~negotiated in Delhi, part performance occurs there, payment is made there, and the alleged breach occurs in Mumbai.~~

The plaintiff institutes the suit in Bengaluru.

Which is the most precise proposition?

- ✓ A. Bengaluru has jurisdiction only because the defendant has a branch office there.
- ✗ B. Bengaluru has jurisdiction only because the plaintiff prefers Bengaluru and he is the dominus litis.
- ✗ C. Bengaluru has no jurisdiction because the cause of action did not arise there.
- ✗ D. Bengaluru has no jurisdiction because a suit against a corporation can only be filed at its head office.

Q7. Suit I: A sues B seeking specific performance of an agreement to sell Property X.

Suit II: B sues A seeking damages for A's alleged trespass onto Property X.

Both disputes arise out of a long-running business relationship between A and B. B seeks stay of Suit II under Section 10. → Res sub judice

Which is strongest?

- ✗ A. Section 10 applies because the parties and broad relationship are identical.
- ✗ B. Section 10 applies because the suits involve questions of law arising from the same relationship.
- ✓ C. Section 10 does not apply because the matter in issue must be directly and substantially the same.
- ✗ D. Section 10 does not apply whenever the same contract appears in the pleadings.

Q8. Maharaja Summer Palace, Udaipur is a luxury heritage resort. The ownership of it is under dispute. Plaintiff is Leela, the heir and defendant is a businessman, Rajat, who claims lawful purchase from trustee of royal estate. In 2015, Leela filed a suit against Rajat for possession and mesne profits of the property which was dismissed because the valuation was more than the pecuniary jurisdiction of the court. Rajat then filed a suit against Leela in London claiming declaration of validity of the sale deed in his favour. While this suit was pending, Leela filed a suit in Rajasthan High Court claiming possession and MP. Rajat argues Res Subjudice.

✗ A. Res Subjudice is applicable because in both suits parties, subject matter, matter in issue is directly and substantially the same.

✓ B. Res Subjudice does not apply for cases pending in foreign courts.

✗ C. Res Judicata applies for the second suit because the first suit by Leela was already decided by the court.

✗ D. Res judicata applies because suit is pending in London court.

Q9. X Pvt. Ltd. instituted a suit against Y Ltd. alleging infringement of its registered trademark "ORVIA" and sought a permanent injunction. Y denied infringement and, in its written statement, disputed X's entitlement to enforce the registration. Y relied upon its own earlier adoption and use of the mark and contended that X had obtained registration despite Y's prior use.

After trial, the court held that X's registration could be enforced against Y, rejected Y's contention based on prior use, and decreed the suit. Y's appeal was dismissed, and the decree became final.

Thereafter, Y instituted a fresh suit against X seeking cancellation of the registration; and an injunction restraining X from asserting rights under that registration.

In the second suit, Y relied upon material correspondence exchanged between X and a third party before the institution of the first suit, contending that the correspondence disclosed facts which, according to Y, made X's registration legally vulnerable. Y admits that the correspondence was in its possession during the trial of the first suit, but argues that the particular ground now relied upon was never adjudicated upon in the first suit.

X raises a plea under Section 11 CPC. → Res judicata

Which of the following is the most appropriate?

- ✗ A. The second suit is barred because the validity of the registration was necessarily and finally decided in the first suit, irrespective of the basis on which Y now seeks cancellation.
- ✗ B. The second suit is not barred because the relief of cancellation was not claimed in the first suit and, consequently, the matter in issue in the two suits cannot be regarded as the same.
- ✓ C. The second suit may be barred notwithstanding the absence of an express adjudication on the particular

ground now relied upon, depending upon whether that ground was one which Y, having regard to the circumstances existing during the first suit, might and ought to have raised in that suit.

\*D. The second suit cannot be barred because a plea concerning the validity of a registered intellectual-property right constitutes a distinct cause of action whenever a different statutory ground of invalidity is subsequently relied upon.

Q10. A, a private company, enters into an agreement with the State Government under which it is granted exclusive rights to operate a specified mineral-processing facility for 20 years. The agreement contains a clause providing that dispute concerning the "commercial obligations, accounts, payments and performance of the parties" shall be referred to arbitration.

A dispute subsequently arises. The State Government terminates the agreement, alleging that A failed to comply with certain statutory environmental conditions. A institutes a suit seeking:

1. a declaration that the termination is contrary to the contractual terms;
2. damages for breach of the agreement; and
3. an injunction restraining the Government from invoking a contractual bank guarantee pending adjudication of A's contractual claim.

The Government contends that the suit is barred by Section 9 CPC, arguing that the dispute arises out of the exercise of statutory powers concerning regulation of mineral operations and therefore cannot be adjudicated by an ordinary civil court.

Assume that the relevant statute does not expressly bar civil-court jurisdiction and contains no alternative adjudicatory mechanism for contractual disputes of this nature.

Which is the best answer?

\*A. The suit is excluded from the jurisdiction of the civil court because whenever determination of a dispute requires consideration of statutory obligations, the matter ceases to be one of civil nature for Section 9 purposes.

\*B. The suit is maintainable because every dispute concerning contractual rights is necessarily of a civil nature, even where the relief sought would require the court to examine the legality of statutory action.

\*C. The suit is maintainable unless the statutory framework, expressly or by necessary implication, excludes the civil court's jurisdiction; the mere fact that statutory obligations form part of the factual background does not, by itself, take an otherwise contractual dispute outside Section 9.

\*D. The suit is barred because the Government is a party and the termination was founded upon statutory non-compliance; disputes involving the exercise of governmental statutory powers are presumptively outside the scope of Section 9.

PART B: EACH QUESTION CARRIES 2 MARKS.

Q1. Define decree.

Keeping the answer brief (for me!)

i) s. 2(2) → a) formal expression  
b) of an adjudication  
c) which conclusively determines  
d) the rights & liabilities of the parties  
e) in the suit.

ii) Cause ~~pending~~ preliminary or final.  
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Q2. What is the object of Res Judicata? Mention any one relevant case law.

- A) 3 legal maxims → No man should be vexed twice for the same cause.  
ii) Interest of State that litigation should come to an end.  
iii) Every judicial decision must be accepted as correct.

∴ The object → are technically the above all.

B) One case law → Yadaviah v. State of Telangana (your fav. case as quoted on 6/9/26).  
Fundamental / collateral determination.

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Q4. Who is a judgment debtor?

i) The party against whom the the judgment is given, i.e., the party who loses.  
decree

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Q3. A lives in Pune and buys (sale agreement) a villa in Goa from B who resides in Mumbai. Registered sale deed promises peaceful possession of villa, B to build a pool within 6 months and B to pay 10 Lacs if construction is delayed. B does not fulfil any condition. Assume that CPC allows each issue to be tried separately, identify where each issue could be tried (territorial jurisdiction).

i) immovable property → hence, when property is situated & or where defendant resides or carries on business.

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∴ Goa & Mumbai.

Q5. What is meant by the "implied exclusion" of civil-court jurisdiction under Section 9 CPC?

Where the statute explicitly does not bar the jurisdiction, however, where the general statement of law & public policy bars it.

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